
Indigenous Law Institute

Revoke the Inter Cetera Bull

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by Valerie Taliman

Indian people are denied their rights today simply because they were not Christians at the time of European arrival. Shawnee/Lenape legal scholar Steven Newcomb raised more than a few eyebrows when he made that statement at the Parliament of World Religions, held in Chicago in early September. The historic parliament was attended by more than 7,700 spiritual leaders and participants and was intended to provide a forum to foster spiritual understanding and world peace.

Newcomb and Birgil Kills Straight, an Oglala Lakota from Kyle, S.D., represented the Indigenous Law Institute and spoke on a panel called “Voices of the Dispossessed.” They were joined by Julio Revolorio, a Mayan from Guatemala, and Tupac Amaro Indi, Quiche from the Amazon, who shared their views on loss of indigenous lands.

Newcomb and Kills Straight’s presentation was the first time that many people heard about the relationship between the theft of Native lands and the Catholic Church’s ancient doctrines. Those doctrines, called papal bulls, still stand after more than 500 years and are the basis for ongoing patterns of subjugation that have been incorporated into federal Indian laws.

In an open letter, the Indigenous Law Institute is calling to Pope John Paul II to formally revoke these documents in order “to demonstrate solidarity with indigenous nations and to show willingness to honor and respect (Native) inherent lights to liberty, justice, and peace.”

The two primary documents Newcomb discussed included a 1452 decree issued by Pope Nicholas V which called upon Portugese King Alfonso “to invade, search out, capture, vanquish and subdue all Saracens and pagans,... and other enemies of Christ.” Pope Nicholas also directed that the land and possessions of these people be taken away and that non-Christians be “reduced to perpetual slavery.”

Newcomb explained that this document was followed by a second doctrine, the 1493 Inter Cetera papal bull, issued by Pope Alexander VI which decreed the pope’s desire that “barbarous nations be overthrown” and those nations “discovered” be subjugated and reduced to the Catholic faith “to propogate the Christian religion.” These decrees set the stage for 500 years of advocating warfare, rather than peace, against Native peoples and made it impossible for the Christian world to respect Native Nations of the Western hemisphere, he said.

Newcomb, who has spent 10 years researching the origins of federal Indian law, said these ancient doctrines serve as the foundation of federal Indian policy that denies Indian people their rights to ancestral homelands because they were not Christians when the Europeans first arrived. “These ancient laws of Christendom were incorporated into an 1823 Supreme Court decision, *Johnson v. McIntosh*, which made a distinction between Christians and heathens,” Newcomb said. The term “heathen,” he noted, was applied to persons whose religions were neither Christian, Jewish, or Moslem, which, of course, meant virtually all Native peoples.

“Why this is so critically important to Native people in the U.S., and to indigenous peoples (everywhere), is that in *Johnson v. McIntosh*, the reasoning of the court was based upon a distinction between Christians and heathens, and the Doctrine of Discovery was formally written into the laws of the United States by the Supreme Court,” he said.

“It said that the first Christian nation to ‘discover’ a land of heathens and infidels (beasts of prey) had the ultimate domination over those lands and that heathens only have right of occupancy.”

He stressed the importance of the word “dominion,” derived from the Latin word “domo,” which means “to subjugate, subdue, tame, domesticate, place into subservience and colonize.”

Newcomb also noted that according to Christian international law, lands which had no Christian owners were considered to be vacant lands, even though inhabited by non-Christians. “So the lands that Columbus and other conquerors took into possession were considered as belonging to nobody because they were not the property of any Christian nation,” Newcomb wrote in a paper called “Pagans in the Promised Land.”

In the *Johnson v. McIntosh* decision, Chief Justice John Marshall cited various charters of England to document acceptance of the Doctrines of Discovery and said European nations making such discoveries only had a legal

obligation to recognize the “prior tide of any Christian people who may have made a previous discovery,” according to Newcomb’s research.

“In short, Christians had title, heathens only had occupancy,” he said. “Few people realize that the U.S. Supreme Court’s Christian/heathen distinction is still the Supreme Law of the land today.”

“On that basis, the U.S. continues to deny that Indian people have a true right of property in their own ancestral homelands and that they have rights to complete sovereignty as independent nations.”

Kills Straight drew the link between the industrialized world’s view of the earth and the subsequent destruction that has occurred by manmade laws based on capitalistic economies and domination over nature.

“In 500 years, more than 96 million indigenous peoples have been lost to this destruction,” he said, along with much of the traditional knowledge they carried. He said that Native people’s understanding of natural laws and Mother Earth as a spiritual entity is critically important to share in these times when many species are being devastated.

“It’s good to see spirituality coming back strong in our communities,” he said. “Some kind of shift needs to occur or life on this Earth will cease. The rest of the world used to assume that they had nothing to learn from Native people of this land but that’s changing.”

“By revoking the Inter Cetera bull of 1493, the Pope can show support of Native people in his actions, not just words,” Newcomb said. “It will symbolically call for an end to this tradition of subjugation that we have lived with for 500 years.”

“So this is a spiritual effort we are undertaking and it’s not just about the Pope or the Catholic Church - it’s about the lack of honor and compassion and caring that is so indicative of this industrial world,” he said.

“This is a first step toward the Church and the rest of the Christian world coming to terms with the first indigenous principle: Respect the Earth as our Mother and have a sacred regard for all living things. And that means our women and our children and our future generations.”

Author’s Note: During the parliament, the 60 Native delegates developed a “Declaration of Vision” that included a call to the Roman Catholic Hierarchy to revoke the 1493 Inter Cetera Papal Bull. The Declaration of Vision was presented to the World Parliament general assembly by Charlotte Black Elk and was endorsed by resolution in a near unanimous vote. However, Dr. David Ramage, Jr., Chairman of the Council Parliament, later overruled the vote at a post-parliament meeting, saying that all resolutions passed during the general assembly had no standing since the assembly was intended “only to exchange insights, not to take group actions.” It is unclear what action will be taken to address the declaration.

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